

[doc. web n. 10039553]

Provision of June 20, 2024

Register of provisions

n. 373 of June 20, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures with external relevance,

aimed at carrying out the tasks and

exercising the powers assigned to the Guarantor for the

protection of personal data, approved by

Resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary

General pursuant to Article 15 of the Guarantor's

Regulation No. 1/2000 on the organization and

operation of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

Rapporteur Attorney Guido Scorza;

PREAMBLE

1. Introduction.

In the context of the examination of the complaint submitted pursuant to Article 77 of the Regulation by Ms. XX

- who particularly complained about the

publication on the official website of the Municipality

of Nepi of a ranking formed following the

preliminary test of a public competition, containing

the list of admitted and not admitted candidates, among

whom was the complainant herself - the Authority noted,

among other profiles of violation attributable to

the aforementioned Municipality, the lack of regulation, pursuant

to Article 28 of the Regulation, of the relationship with Grafiche E. Gaspari S.r.l. (hereinafter, also "Company"), which has been managing the official website of the Municipality on its behalf for several years.

In this regard, the Authority also initiated a separate investigation against the Company for the profiles attributable to its responsibility.

2. The investigative activity.

In response to an initial request for information made by the Authority pursuant to Article 157 of the Code, the Municipality of Nepi, in a note dated March 2, 2022, stated, in particular, that it had "promptly activated to resolve the problem" concerning the online publication of the aforementioned ranking, contacting "immediately [...] the [its] external supplier Gaspari Srl [...] for the removal of the page" on which the personal data of the complainant were published.

In response to subsequent requests for clarification from the Authority, the Municipality, lastly with a note dated November 11, 2022, stated that, regarding "the signing of the agreement on the protection of personal data with Grafiche E. Gaspari S.r.l. [...], having ascertained the unavailability [of the agreement pursuant to Article 28 of the Regulation, it had proceeded to] draft the document", sending a copy of an agreement concluded only on November 3, 2022, with the Company pursuant to Article 28 of the Regulation.

Subsequently, with a note dated October 13, 2023, the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified Grafiche E. Gaspari S.r.l., pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having the aforementioned Company carried out, on behalf of and in the interest of the Municipality, the processing of personal data of a plurality of data subjects (users of the website and other interested parties whose personal data are published on the same site), given the lack of regulation of the relationship with the Municipality pursuant to Article 28 of the Regulation, in the absence of an appropriate legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation and Article 2-ter of the Code (both in the text prior to the amendments made by Decree Law No. 8 of October 8, 2021 and in the current text).

With the same note, the aforementioned Company was invited to submit to the Guarantor written defenses or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981). In a note dated November 13, 2023, the Company, which did not request to be heard, submitted a defensive memorandum, stating, regarding

in particular the specific profile of violation

contested, that:

- "the Municipality of Nepi has been our client since 2011

[...], when it purchased only some of the services of

the "Bussola" project [...]: the license for the use of

a) "a web program with which to build and update the institutional site; the WEB space on a server of another provider (initially Register S.p.A., then transferred to Aruba S.p.A. and Amazon Europe), for which our company acted as a commercial intermediary and manager of access profiles; general consulting for the construction of internal management profiles of the site and a customized layout.";

- "this company and its subsidiaries, on behalf of the Municipality of Nepi, have never managed any data related to the users of the website and have never published any personal data on the website of the Municipality of Nepi. In fact, after the infrastructure of the site was established through the creation of a basic layout and the provision of a specific publishing software, it provided the ID and a password for access to the software for the system administrator of the Municipality of Nepi, who in turn could appoint or create 'management' profiles. [...] The contents and documents linked from the site could be (and still can be) uploaded and placed on the servers only by the system administrator of Nepi and his appointees. Our company, as an intermediary with the owners of the servers, performs the function of commercial intermediary and 'super-administrator' of the access profiles, assigning an ID and a PW only to the system administrator of Nepi, who, in turn, autonomously creates management profiles for employees of the Municipality of Nepi.";

- "in July 2019, our company [...], within the framework of the service that had entered its eighth year of duration, carried out two operations: c1- Abandoned the Register SPA server and migrated partly to a similar Amazon server and partly to an Aruba server; c2- Launched a new site, excluding Transparent Administration which continues to be provided by another company, through a specific software that performs two complementary operations:

c2a- copies the old site including all links to this new server, with a new layout, automatically redirecting each page to the new address; c2b- copies all files linked from the old site, present on the old server, to the new server. This transfer gives each file a new address, which is automatically changed on all links of the pages in which it was contained. It should be noted that all these automatic operations: did not require any processing of the substantial contents of either the pages of the site or the documents, which were transferred with the same content they had on the old server; at no time did our technicians modify any substantial content, thus not performing any processing of personal data on any document or on any page of the site.";

- "it should be further clarified that the content upload software for the site, provided under a license by our company, available to the system administrator of Nepi and those to whom said administrator has provided access profiles, already in the 2011 version, and even more so in subsequent versions, allows for the deletion of both the web pages of the site and the documents linked from these pages and placed on external or different servers. The Municipality of Nepi had no need to appoint us as 'data processing manager of the site', because the processing was done autonomously, creating, modifying, and deleting both the pages of the site and the linked documents. It is therefore obvious that if a document uploaded by the Municipality of Nepi was not deleted, nothing can be reproached to this company, which could not and should not perform any processing of that type.";

- "on 18/02/2022, the technicians of our company, at the express request of the Municipality of Nepi, which was the data controller of the data processed in that document, deleted from the active server after the 2019 transfer, that file with the ranking, they did so in an extraordinary manner, activating a function that under normal circumstances they would not have been able to use at all.";

- "When in 2011 the provision of services was initiated, it was clear that making available a web space, software for managing a site, and creating a site layout, providing consulting for the publication, autonomously by the Municipality of Nepi, of web content and documents, based on a regular provision according to local authority regulations, did not require a formal appointment as 'data processing manager'. In 2011, the notion of Data Processing Manager was absolutely different from the current one. The substantial functions that the data processing manager must fulfill today, as

outlined in Article 28 of the European Regulation, have always been carried out by this company by virtue of the provision, based on our commercial proposal of 2011, detailed in its content by the cost estimates, the attached advertising material, and the acceptance determinations of the proposal, commitment, and expenditure liquidation, adopted by the Municipality of Nepi.";

- "The expenditure of just over five euros a day, updated to 2023, makes it clear that the Municipality of Nepi, beyond formal aspects, could not ask this company for anything more than what has been duly provided, without any mutual disputes. The insignificance of the expenditure, as noted by the author of the determination of the Municipality of Nepi [n. 312 of May 17, 2023], means that the application of the formalities of the Code of Contracts is not binding, as Article 17 UC of RD 2440 of 1923 can still be applied to supplies of this type, which provides for each PA the private negotiation 'by correspondence, according to commercial usage, when concluded with commercial firms', effectively rendering said correspondence as a contract and,"

of personal data requires that the processing of personal data be carried out in compliance with the principles and obligations set forth in the Regulation.

4. Responsibilities of the Data Controller and Data Processor.

The Data Controller is responsible for ensuring that the processing of personal data complies with the applicable legal framework and that the rights of the data subjects are protected. This includes implementing appropriate technical and organizational measures to ensure a level of security appropriate to the risk (Article 32 of the Regulation).

The Data Processor, on the other hand, must act only on the documented instructions of the Data Controller and is required to assist the Data Controller in ensuring compliance with the obligations under the data protection legislation (Article 28, paragraph 3, letter f of the Regulation).

5. Conclusion.

In light of the findings from the preliminary investigation and the statements made by the Company, it is established that the Company, in providing the instrumental service aimed at managing the institutional website of the Municipality, has processed, on behalf of the Municipality and in its interest, the personal data of users of the respective institutional website and other interested parties whose personal data is published therein, in its capacity as Data Processor as per Article 4, number 8 of the Regulation.

It is also noted that, although the Company has stated that it has "never managed any data related to the users of the website and has never published any personal data on the website of the Municipality of Nepi" and that it plays a role of commercial intermediation between the Municipality of Nepi and the companies owning the server on which the website is hosted, the role of "super-administrator" of the access profiles to the website, as confirmed by the Company itself, inevitably involves, given the definition of "processing" (Article 4, point 2 of the Regulation), the Company's involvement in the processing of personal data of users of the aforementioned website as well as other personal data published therein.

This is further confirmed by the extraordinary intervention carried out by the Company on February 18, 2022, at the request of the Municipality, aimed at removing from the server the file containing the ranking that was the subject of the complaint, an intervention that the Company could not have carried out in any case without its actual involvement in the processing of the aforementioned personal data on behalf of the Municipality.

Based on the above elements, it must therefore be considered that, contrary to what the Company has claimed, and although it generally does not directly access the data processed within the context of the website in question, the operations described above nonetheless constitute processing of personal data as per Article 4, point 2 of the Regulation, which, in this case, is carried out by the Company on behalf of and in the interest of the Municipality.

In such cases, the regulation on the protection of personal data requires that the processing of personal data be conducted in accordance with the principles and obligations set forth in the Regulation.

The processing of data requires, as stated, that the relationship between the data controller and the data processor be governed by a contract or another legal act pursuant to Article 28 of the Regulation (see also Recital 81 and Article 4, point 8 of the Regulation), also in order to avoid processing in the absence of an appropriate legal basis, given the notion of "third party" as defined in Article 4, point 10 of the Regulation (see also Article 2-ter, paragraphs 1 and 4, letter a) of the Code, which defines the "communication" of personal data). Nevertheless, the Company entered into a personal data protection agreement with the Municipality of Nepi only on November 3, 2022, despite having begun providing its services to the Municipality, including in particular the management of access profiles, many years prior (see municipal determination for the assignment of service no. 861 and statements made by the Company).

Within the framework of the Regulation and the Code, the processor, in turn, carries out such processing in accordance with the instructions given by the controller and may, therefore, legitimately process personal data on behalf of the controller only on the basis of a contract or another legal act, the existence of which does not constitute, contrary to what the Company claims, a mere formal compliance, as it must regulate some of the most relevant aspects of the processing and incorporate the specific instructions of the controller. It follows that, more generally, processing can in any case be legitimately carried out by the processor only in the presence of appropriate regulation of the relationship from the perspective of data protection and within the limits and in the manner dictated by the controller for the execution of data processing (see Article 28, paragraph 5 of the Regulation).

In response to the objections raised by the Authority, the Company considered that the correspondence exchanged with the Municipality should be regarded as "a contract and, therefore, as one of the documents referred to in Article 28 of the EU Regulation aimed at formalizing the appointment of a data processor [...]" on the assumption of the applicability of Article 17 of the Royal Decree of November 18, 1923, no. 2440 (see note of November 13, 2023) and that "the policy for managing the web spaces of the suppliers [...of which it in turn avails itself] would render any different regulation superfluous" (see note of November 13, 2023). In this regard, the Regulation establishes that the contract referred to in Article 28 must be in written form and contain all the essential contents expressly provided for by the aforementioned provision. This is because only in this way can the agreement in question ensure an adequate regulation of the relationship between the controller and the data processor and, consequently, the fulfillment of all the substantive guarantees connected (see Recital no. 81 of the Regulation; see also the "Guidelines 07/2020 on the concepts of data controller and data processor under the GDPR," adopted by the European Data Protection Board on July 7, 2021, specifically point 102).

These principles also applied with regard to the legal framework preceding the Regulation, as clarified by the Court of Cassation (see Cass., Section I Civil, order no. 21234 of July 23, 2021 cited, although in relation to personal data processing in a different context). In confirming a measure of the Authority, the Court, for the aspects relevant in this case, specified that "the agreement between the 'controller' and the 'processor' is legislatively provided for and is not intended solely to regulate the inter partes relationships, with merely internal significance, in terms of any contractual non-compliance - as erroneously claimed by the appellant - because the discipline laid down by the 'controller' regarding the purposes and methods of processing becomes a necessary element for the qualification of 'processor' in the specific case."

Regarding the argument invoked by the Company that "in 2011 the notion of Data Controller was absolutely different from the current one," it should be clarified that, although the processing was initiated by the Company on behalf of the Municipality during the period prior to the entry into force of the Regulation, for the purposes of identifying the applicable legislation, from a temporal perspective, it must be noted that, based on the principle of legality set forth in Article 1, paragraph 2, of Law No. 689/1981, "Laws that provide for administrative sanctions apply only in the cases and times considered therein." This leads to the necessity of taking into account the provisions in force at the time of the committed violation; in the case at hand, given the permanent nature of the contested unlawful act, such moment must be identified at the time of cessation of the unlawful conduct, which

occurred with the signing of the agreement pursuant to Article 28 of the Regulation, on November 3, 2022, and therefore, during the full validity of the provisions of the Regulation and the Code (as amended by Legislative Decree No. 101/2018). Moreover, the obligation to regulate the relationship with subjects acting on behalf of and in the interest of the data controller was already provided for by the previous framework (see Articles 4, letter g), and 29 of the Code, prior to the amendments made by Legislative Decree No. 101/2018, which provided that "Data controllers enter into written legal acts with the aforementioned data processors, specifying the purpose pursued, the type of data, the duration of processing, the obligations and rights of the data processor, and the methods of processing (paragraph 4-bis). [...] The data processor carries out the processing in accordance with the conditions established pursuant to paragraph 4-bis and the instructions given by the data controller, who, also through periodic checks, supervises the timely compliance with the provisions of paragraph 2, their own instructions, and what is established in the acts referred to in paragraph 4-bis (paragraph 5)"; in this regard, see Cass., Section I Civil, order No. 21234 of July 23, 2021 cited).

The violation of the aforementioned provisions, even if it did not entail the application of an administrative sanction (unlike what is now provided for by Articles 28 and 83, paragraph 4, of the Regulation), nonetheless resulted in processing that was not compliant with data protection regulations, as it could configure an unlawful communication or provision of personal data in favor of a subject who, not having been designated as a data processor, was a third party with respect to the processing (see, for similar considerations, provision of July 21, 2022, No. 268, web document No. 9811271, against a service provider for the acquisition and management of reports of unlawful acts, as well as provisions of July 21, 2022, Nos. 269 and 270, web documents Nos. 9813326 and 9811732, against the data controllers).

In light of the preceding considerations, regarding the case at hand and as previously clarified by the Authority concerning similar cases, since the Company has not been identified as the data processor and no specific conditions have been indicated by the Company that could have legitimized the processing of personal data, it must be concluded that the processing was carried out in the absence of the conditions of lawfulness provided for by the Regulation and the Code. Article 6, paragraph 1, letters c) and e) of the Regulation, in fact, allows processing if necessary "to comply with a legal obligation to which the data controller is subject" or "for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller," thus legitimizing only the data controller to process data in such contexts and not other subjects who also process data on behalf of and in the interest of the data controller itself (on this point, regarding the lack of legitimacy of processing for subjects who process data on behalf of and in the interest of the data controller, in the absence of regulation of the relationship pursuant to Article 28 of the Regulation, see, among many others, provisions of July 18, 2023, Nos. 313 and 314, web documents Nos. 9920645 and 9920664; provisions of July 21, 2022, Nos. 268, 269, and 270, web documents Nos. 9811271, 9813326, and 9811732; provisions of September 17, 2020, Nos. 160 and 161, web documents Nos. 9461168 and 9461321; provision of February 11, 2021, No. 49, web document No. 9562852; provisions of December 17, 2020, Nos. 280, 281, and 282, web documents Nos. 9524175, 9525315, and 9525337; as well as provisions of February 10, 2022, Nos. 43 and 44, web document No. 9751498; see also "Guidelines 07/2020 on the concepts of data controller and data processor in the GDPR," adopted on July 7, 2021, by the European Data Protection Board, specifically note 42).

In accordance with the aforementioned orientation of the Authority, the Court of Cassation has recently ruled, specifying that, in the absence of a signed agreement pursuant to Article 28 of the Regulation, and in the absence of other conditions that could legitimize the processing of personal data, the latter must be considered carried out in the absence of an adequate legal basis and in violation of the principle of lawfulness (see Cass., Section I Civil, judgment No. 35256 of December 18, 2023, which confirmed the provision of July 22, 2021, No. 294, web document No. 9698597: "in the absence of 'designation' [...] pursuant to Article 28 of the Regulation] with a specific contract or other equivalent act, nor having identified other conditions that could legitimize the processing of personal data of users of the service in question, their processing, by [...], must be considered carried out in the absence of an

adequate legal basis and, therefore, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation").

In light of the preceding considerations, in the case at hand, since the data processor has not been identified...

****Company as Data Controller and Not Having Found Specific and Autonomous Legal Grounds to Legitimize the Processing of Personal Data of Users of the Institutional Website of the Municipality of Nepi and Other Interested Parties Whose Personal Data Are Published Therein, It Must Be Concluded That the Processing in Question Was Carried Out by the Company in the Absence of the Legal Conditions Provided for by the Regulation and the Code, in Violation of Articles 5, Paragraph 1, Letter a), and 6 of the Regulation and Article 2-ter of the Code.****

4. ****Conclusions****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the truthfulness of which may be subject to accountability under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Guarantor No. 1/2019 apply. For the determination of the applicable norm, from a temporal perspective, the principle of legality referred to in Article 1, Paragraph 2, of Law No. 689/1981 must be recalled, according to which laws that provide for administrative sanctions apply only in the cases and times considered therein. This determines the obligation to take into account the provisions in force at the time of the committed violation, which – given the permanent nature of the contested offenses – must be identified at the moment of cessation of the conduct. It is believed that the Regulation and the Code constitute the legislation under which to evaluate the treatments in question. Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by Grafiche E. Gaspari S.r.l. is noted, for having the aforementioned Company processed, on behalf of and in the interest of the Municipality of Nepi, the personal data of a plurality of interested parties (users of the website and other interested parties whose personal data are published on the same site), given the lack of regulation of the relationship with the Municipality pursuant to Article 28 of the Regulation, in the absence of an adequate legal basis, in violation of Articles 5, Paragraph 1, Letter a), and 6 of the Regulation and Article 2-ter of the Code (both in the text prior to the amendments made by Decree Law of October 8, 2021 and in the current text). In any case, considering that the conduct has exhausted its effects, the prerequisites for the adoption of corrective measures, referred to in Article 58, Paragraph 2, of the Regulation, do not apply.

5. ****Adoption of the Injunction Order for the Application of the Administrative Monetary Sanction and Accessory Sanctions (Articles 58, Paragraph 2, Letter i and 83 of the Regulation; Article 166, Paragraph 7, of the Code).****

The Guarantor, pursuant to Articles 58, Paragraph 2, Letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative monetary sanction pursuant to Article 83, in addition to [other] corrective measures [referred to in this paragraph], or in place of such measures, depending on the circumstances of each individual case” and, in this context, “the College [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the website of the Guarantor pursuant to Article 166, Paragraph 7, of the Code” (Article 16, Paragraph 1, of the Regulation of the Guarantor No. 1/2019). Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (same processing or interconnected treatments), Article 83, Paragraph 3, of the Regulation applies, according to which the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all the established violations - Articles 5, Paragraph 1, Letter a), and 6 of the Regulation, as well as Article 2-ter of the Code - are subject to the administrative sanction provided for by Article 83, Paragraph 5, of the Regulation, as also recalled by Article 166, Paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000, or for companies, up to 4% of the total annual

worldwide turnover of the previous financial year, if higher. Considering that, as derived from the latest available financial statement (December 31, 2022) in accordance with previous measures adopted by the Authority, the total annual turnover of the Company in 2022 is €10,506,637, the total amount of the sanction is to be quantified up to €20,000,000. The aforementioned administrative monetary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, Paragraph 2, of the Regulation. With specific regard to the nature, severity, and duration of the violation (Article 83, Paragraph 2, Letter a), of the Regulation), it is necessary to consider, in particular, that the processing in question involved personal data of all users of the institutional website of the Municipality as well as other interested parties whose personal data were published there, and that the Company entered into an agreement with the Municipality pursuant to Article 28 of the Regulation only on November 3, 2022, despite having started providing its services to the Municipality, including in particular the management of access profiles, many years earlier (see municipal determination of service assignment No. 861 and statements made by the Company).

considers that the violation did not involve personal data related to special categories of data (Article 9 of the Regulation) or to criminal convictions and offenses (Article 10 of the Regulation; Article 83, paragraph 2, letter g), of the Regulation).

In light of these circumstances, it is believed that, in this specific case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, it is considered that, for the purposes of quantifying the sanction, the following mitigating circumstances should be taken into account:

- The Company has offered good cooperation with the Authority during the investigation, having reached, during the investigation, the conclusion of an agreement pursuant to Article 28 of the Regulation with the Municipality of Nepi (Article 83, paragraph 2, letter f), of the Regulation);
- There are no relevant previous violations committed by the Company (Article 83, paragraph 2, letter e), of the Regulation);
- In the context of the services provided by the Company on behalf of the Municipality of Nepi, as a small territorial entity (just over 9,000 inhabitants), the Company has nonetheless demonstrated effective support in favor of the data controller, particularly by activating specific procedures aimed at remedying the violation attributed to the Municipality regarding the online dissemination of data contained in the ranking of the aforementioned competitive procedure (Article 83, paragraph 2, letter k), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €12,000 (twelve thousand euros/00) for the violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code (both in the text prior to the amendments made by the decree-law of October 8, 2021, and in the current text), as an administrative monetary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that, as noted above, the processing has continued for an extended period without adequate regulation of the relationships pursuant to Article 28 of the Regulation, it is also considered that the accessory sanction of publication on the website of the Authority of this provision should be applied, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Regulation of the Authority No. 1/2019.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by Grafiche E. Gaspari S.r.l. for violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code (both in the text prior to the amendments made by the decree-law of October 8, 2021, and in the current text), in the terms set out in the

reasoning;

ORDERS

Grafiche E. Gaspari S.r.l., represented by the legal representative pro tempore, with registered office at Via Minghetti, 18 – 40057 - Granarolo Dell'Emilia (BO), Cadriano fraction, VAT number 00089070403, to pay the sum of €12,000 (twelve thousand euros/00) as an administrative monetary sanction for the violations indicated in the reasoning. It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

COMMANDS

the aforementioned Grafiche E. Gaspari S.r.l., in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €12,000 (twelve thousand euros/00) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

- the publication of this provision on the website of the Authority pursuant to Article 166, paragraph 7, of the Code (see Article 16 of the Regulation of the Authority No. 1/2019);
- the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of the violations and the measures adopted in accordance with Article 58, paragraph 2, of the Regulation (see Article 17 of the Regulation of the Authority No. 1/2019).

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, June 20, 2024

THE PRESIDENT

Stanzione

THE RAPPOREUR

Scorza

THE SECRETARY GENERAL

Mattei